

GAHC010148992025



2025:GAU-AS:10404

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : AB/1572/2025

CHOW LUCHANA NAMCHOOM @ SRI LUSANA NAMSUNG
S/O CHOW RAJKUMAR NAMCHOOM
R/O VILL- GOSAIBARI
P.O. GOSAIBARI
P.S. BIHPURIA
DIST. LAKHIMPUR, ASSAM
PIN-787033

VERSUS

THE STATE OF ASSAM
REPRESENTED BY THE PP, ASSAM

Advocate for the Petitioner : MS. S G BARUAH, MR. B BORGOHAIN, MR B SAIKIA, MR. S
NEOG

Advocate for the Respondent : PP, ASSAM, MS J BEGUM (INFORMANT), MR M HOQUE
(INFORMANT)

BEFORE
HON'BLE MRS. JUSTICE MITALI THAKURIA

ORDER

08-08-2025

Heard Ms. S. G. Baruah, learned counsel for the petitioner and Mr. P. Borthakur, learned Additional Public Prosecutor for the State respondent. Also

heard Ms. J. Begum, learned counsel for the informant.

2. This is an application under Section 482 BNSS, 2023 praying for grant of pre-arrest bail to the accused/petitioner, who is apprehending arrest in connection with Narayanpur P.S. Case No. 40/2025 under Sections 351(2)/69 of the BNS, 2023.

3. It is submitted by Mr. Baruah, learned counsel that in pursuance of the interim order dated 14.07.2025, the petitioner has already appeared before the I.O. and cooperated with the investigation of the case and his statement has already been recorded.

4. She further submitted that considering the nature of allegation and the entire aspects of the case, custodial interrogation of the petitioner may not be required for investigation of the case.

5. However, the petitioner is ready and willing to cooperate with the I.O. in further investigation of the case, if he is granted with some interim protection.

6. Mr. Borthakur, learned Addl. PP submitted in this regard that the informant/victim has brought sufficient allegation against the petitioner in her statement recorded under Section 183 BNSS and accordingly, he submitted his custodial interrogation may be required for the purpose of investigation of the case.

7. Ms. Begum, learned counsel for the informant submitted that the informant has brought serious allegation of rape against the petitioner, hence considering the nature of offence his prayer of interim pre-arrest bail may not be considered.

8. Considering the submissions made by the learned counsel for the parties and also considering the conduct of the petitioner, I find that custodial

interrogation of the petitioner may not be required for the purpose of investigation of the case.

9. Accordingly, the interim pre-arrest bail granted earlier to the petitioner, namely, Chow Luchana Namchoom @ Sri Lusana Namsung on 14.07.2025, is hereby made absolute on the same terms and conditions.

10. Accordingly, this pre-arrest bail application stands disposed of.

JUDGE

Comparing Assistant